

HOUSE BILL 77

By Stevens

AN ACT to amend Tennessee Code Annotated, Title 37;
Title 39 and Chapter 1007 of the Public Acts of
2024, relative to juvenile offenders.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 37-1-134, is amended by adding the following as a new subsection:

(m)

(1) Notwithstanding subsections (a), (b), and (l), after a petition has been filed alleging delinquency based on conduct that is designated a crime or public offense under the laws, including local ordinances, of this state, the court, before hearing the petition on the merits, shall transfer the child to the sheriff of the county to be held according to law and to be dealt with as an adult in the criminal court of competent jurisdiction. The disposition of the child shall be as if the child were an adult if:

(A) The child was sixteen (16) years of age or older at the time of the alleged conduct;

(B) The child has a prior adjudication of delinquency for any offense; and

(C) The court finds:

(i) There is probable cause to believe that the child committed the delinquent act as alleged; and

(ii) The child is not committable to an institution for the developmentally disabled or mentally ill.

(2) A hearing to determine whether the requirements of subdivision (m)(1) have been met must be held in conformity with §§ 37-1-124, 37-1-126, and 37-1-127.

(3) Reasonable notice in writing of the time, place, and purpose of the hearing must be given to the child, the child's parent, guardian, or other custodian at least fourteen (14) days prior to the hearing.

SECTION 2. Tennessee Code Annotated, Section 37-1-134(c), is amended by deleting "The transfer pursuant to subsection (a)" and substituting "A transfer pursuant to subsection (a) or (m)".

SECTION 3. Tennessee Code Annotated, Section 37-1-159(d)(2), is amended by deleting "§ 37-1-134(a) and (b)" and substituting "§ 37-1-134(a), (b), or (m)".

SECTION 4. Tennessee Code Annotated, Section 37-1-131, is amended by deleting subdivision (g)(1)(B).

SECTION 5. This act takes effect July 1, 2025, the public welfare requiring it, and applies to acts committed on or after that date.